Transcription of: Declaration_of_restrictions_19Jan1989.pdf (20 scanned pages)
Transcribed: October 13, 2026. Verbatim; original wording, spelling, and punctuation preserved.
Marks: [?] uncertain reading · [illegible] unreadable · [handwritten: …], [signature], [stamp: …], [seal: …] non-typed elements · {…} text unreadable or cut off in this copy, restored from the identical survey exhibit attached to the other Declaration · underlined captions shown in **bold**.
See *Transcription Notes* at the end.

[stamp: 722]

DECLARATION OF RESTRICTIONS

[stamp: DOCUMENTARY SURCHARGE PAID $3.00]

This Declaration, Made this [handwritten: 19TH] day of [handwritten: JANUARY], 1989 by PAUL L. SCHLOSSER and DOROTHY J. SCHLOSSER, of New Castle County and State of Delaware ("Owner") and GRANVILLE DEVELOPMENT CORPORATION, a corporation of the State of Delaware, ("Equitable Owner"), Owner and Equitable Owner hereinafter referred to as "Declarant".

WITNESSETH:

Whereas, Declarant are, respectively, the Owner and the Equitable Owner of all that certain lot, piece or parcel of land, situate in Mill Creek Hundred, New Castle County and State of Delaware, as shown on the Record Major Subdivision Plan of Hunter's Ridge (the "Plan of Hunter's Ridge"), prepared by Franco R. Bellafante, Inc.; recorded [handwritten: JANUARY 12, 1989] in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No. [handwritten: 9600] containing 47.71± acres of land, which said tract of land is described by metes and bounds in Exhibit "A" attached hereto and made a part hereof, and which said tract is hereinafter referred to as SUBJECT LAND; and

Whereas, Declarant desires to create thereon a residential community with private open space ("Private Open Space") and to provide for the maintenance of traffic islands, including common parking spaces appurtenant thereto, located in the roadbed of the streets serving the said community, hereinafter referred to as "Traffic Islands", for the benefit of said community; and

Whereas, Declarant desires to provide for the orderly preservation of property values for the individual dwelling lots and individual dwelling units in said community; and desires to provide for the orderly and efficient maintenance of said Private Open Space and Traffic Islands; and, to these ends, desires to subject the SUBJECT LAND to the covenants, restrictions, charges and liens hereinafter set forth, each and all of which is and are for the benefit of said property and each owner thereof; and

Whereas, Declarant has deemed it desirable for the efficient and orderly preservation of the property values in said community to create an agency to which should be delegated and assigned the powers of administering and enforcing the covenants and restrictions, maintaining

and administering the Private Open Space and Traffic Islands, and collecting and disbursing the assessments and charges hereinafter created; and

Whereas, Declarant has incorporated or is about to incorporate under the Laws of the State of Delaware as a non-profit, membership corporation HUNTER'S RIDGE MAINTENANCE ASSOCIATION, for the purpose of exercising the functions *inter alia* aforesaid.

Now, Therefore, THIS DECLARATION WITNESSETH: That the Declarant does hereby covenant and declare that it shall hold and stand seized of the SUBJECT LAND under and subject to the following covenants, restrictions, easements, charges and liens which shall be covenants running with the land and which shall be binding upon all of the lands comprising Hunter's Ridge, and only upon such lands:

Article I

GENERAL USE RESTRICTIONS

Section 1. **Private Residences.** The lots shall be used for private residential purposes only, and no buildings of any kind except private dwelling units together with outbuildings customarily appurtenant to the same, such as garages, storage sheds, dog houses and play houses, shall be erected or maintained thereon; in no event shall any outbuildings or appurtenant structures other than garages have a floor area in excess of one hundred twenty (120) square feet; no such outbuilding or appurtenant structure other than garages shall be erected or maintained closer to the front street line than the rear-most wall of the dwelling unit; no prefabricated metal sheds or buildings shall be permitted on any lot. In any event, no such outbuildings shall be constructed or maintained upon the lots until compliance with Article II, Section 1 has been accomplished. All such construction shall be in accordance with applicable building codes. No lot in Hunter's Ridge shall be used in violation of applicable New Castle County zoning ordinances in force from time to time.

Section 2. **Trailers, Mobile Homes, Etc.** No temporary structure, including trailers and mobile homes shall be permitted or maintained upon any lot.

Section 3. **Animals and Pets.** No animals of any kind other than usual household pets shall be kept or maintained on the properties, and no horses, cows, goats, sheep, hogs, poultry, pigeons, bees, or similar animals shall be kept upon the lots. No dog shall be permitted to run at large in violation of law, nor shall any dog be permitted to remain outside after 10:00 p.m. or before 6:00 a.m. except while accompanied by a responsible person.

Section 4. **Vegetable Gardens.** No vegetable gardens shall be kept or maintained closer to the front street than the rear-most wall of the dwelling unit.

Section 5. **Television and Radio Antennas.** No permanent or temporary installation of a television or radio receiving or transmitting antenna shall be constructed, placed or maintained

on any lot, except that such an antenna, other than a so-called satellite receiving dish, may be constructed, placed and/or maintained if it is attached to the dwelling house on such lot, provided that it shall not exceed in height the peak of the roof of said dwelling house by more than ten (10) feet. A satellite dish, not in excess of four (4) feet in diameter may be maintained if approval is obtained in accordance with Article II, Section 1 hereof, and only if the same is hidden from view within a privacy fence provided in Section 10 below.

Section 6. **Trash Receptacles.** Trash receptacles shall be kept in enclosed areas, hidden from view, excepting on regular collection days, when they may be placed temporarily at the curb.

Section 7. **Prohibited Vehicles.** No trucks, buses, travel trailers, boat trailers, boats, utility trailers or campers whatsoever, and no disabled vehicles of any description shall be kept or maintained on any street, lot or driveway, except that any of the same may be kept within enclosed garages; and except that pick-up trucks up to and including 3/4 ton and enclosed vans up to 10,000 lbs, G.V.W. are permitted, provided that they do not exceed the height of seven feet and are kept within enclosed garages or upon driveways. No vehicle of any description shall be parked in any of the common parking spaces appurtenant to Traffic Islands for periods aggregating in excess of forty-eight (48) hours in any period of seven (7) consecutive days.

Section 8. **Signs.** No signs of any nature whatsoever shall be erected, placed or maintained on any lot within the premises described, except that a single real estate "For Sale" sign not to exceed six (6) square feet in size, may be so placed and maintained.

Section 9. **Fences.** No fence shall be erected on any lot closer to the front street line than the rear-most wall of the dwelling unit, except that fences which are dividing lines between two lots may extend forward of the rear-most wall of the dwelling unit along side lot lines, but not closer to the front street than the front-most wall of the dwelling unit including, for this purpose, any attached garage, or to the rear-most wall of a detached garage, but only, in either such case, on the side of the property where the garage is situated. Fences which are dividing lines between lots shall not exceed six (6) feet in height. Other fences, except as provided in Section 10 below, shall be of a height of not more than four (4) feet. No fence shall be erected on rear lot lines or closer to the rear lot line than fifteen (15) feet, except that in the case of a lot which backs to private open space, a fence surrounding a house, a permitted addition to a house, such as a deck, or a swimming pool may be maintained on the rear lot line or closer to the rear lot line than fifteen (15) feet, provided that no portion of the fence on the rear lot line or closer to the rear lot line than fifteen (15) feet shall be farther than six (6) feet from the house, the permitted addition or the surface of the water of the swimming pool, as the case may be, and provided further that no such fence shall interfere with the intended use of any easements or rights-of-way, including, without limitation, walkways, shown on the Plan of Hunter's Ridge. Fences may be located on rear lot lines, and along side lot lines leading to rear lot lines, on lots backing to lots in other subdivisions and backing to Lot 5 in Hunter's Ridge. All fences shall be constructed only of all-

weather pressure treated wood. In any event, no such fences shall be constructed or maintained upon the lots until compliance with Article II, Section 1 has been accomplished.

Section 10. **Privacy Fences.** Privacy fences are defined as those types of fences which enclose only a small portion of the rear yard close to the dwelling itself; for example, a privacy fence may closely enclose a rear patio. Such fences are permitted provided they do not exceed a height of six (6) feet and are constructed of all-weather pressure treated wood. In no event shall said privacy fences enclose an area in excess of 2,000 square feet nor shall any section thereof exceed 60 feet in length, nor shall any such fence be constructed or maintained until compliance with Article II, Section 1 has been accomplished.

Section 11. **Swimming Pools.** No above-ground swimming pools shall be constructed or maintained on any lot. In-ground swimming pools may be constructed and maintained thereon. In any event, no such swimming pool shall be constructed or maintained until compliance with Article II, Section 1 has been accomplished.

Section 12. **Clothes Lines.** No clothes line shall be maintained on any lot except that a clothes line, not to exceed six (6) feet in height, may be maintained within a Privacy Fence constructed in accordance with Section 10 hereof.

Section 13. **Solar Panels.** No solar panel shall be constructed or maintained on any lot except that solar panels may be maintained on the rear roof of a dwelling house, provided that compliance with Article II, Section 1 has been accomplished, and solar panels, not to exceed six (6) feet in height, may be maintained if completely enclosed within a Privacy Fence constructed in accordance with Section 10 hereof.

Section 14. **Power Equipment.** No power lawnmower, chainsaw or other power equipment may be operated on any lot in Hunter's Ridge before 7:00 a.m. or after 9:00 p.m.

Section 15. **Easements.** Easements and rights-of-way are expressly reserved as indicated on the said Plan of Hunter's Ridge.

Section 16. **Trespass.** All purchasers will permit the Declarant and/or its successors in interest in the same business as Declarant temporary trespass upon the purchaser's lot or lots to complete grading or landscaping as required by the approved plans for a period of one (1) year, commencing with the issuance of the certificate of occupancy.

Section 17. **Grading and Seeding.** Abutting property owners are to be solely responsible for grading, seeding, care and maintenance of ground between the curb and property line and also for the maintenance and care of the curb and trees.

Section 18. **Exteriors.** No owner or occupant of any dwelling unit on a lot in Hunter's Ridge shall cause or permit any rug, laundry, aerial, fan, air conditioner, wire or other object to hang from, or protrude from any window or door. All window treatment, including, without limitation,

window shades, curtains and blinds (including vertical blinds, venetian blinds, mini-blinds, micro-blinds, and all other types of blinds) shall be a white or off-white color. All draperies shall be lined with a white or off-white liner. All screens or screenings not installed by Declarant shall be subject to approval in accordance with the provisions of Article II, Section 1.

Article II

ARCHITECTURAL CONTROL

Section 1. **Review of Plans.** No building, outbuilding, shed, satellite receiving dish, fence, wall, swimming pool, solar panel (except a solar panel enclosed with a Privacy Fence), screens or screening, or other construction shall be commenced, erected or maintained upon any lot, nor shall any exterior addition to or change or alteration thereof, including but not limited to exterior color change and/or change in grade or drainage, be made until the plans and specifications, with illustrations, showing the nature, kind, shape, color, height, materials, and proposed location of same, shall have been submitted to and approved in writing by the Declarant. In the event Declarant, or it successors or assigns, fails to approve or disapprove such architectural change request within thirty (30) days after said plans and specifications have been submitted to it, approval thereof will be deemed to have been given by Declarant.

The Declarant, its successors or assigns, in connection with the review of said plans, specifications, and illustrations, shall consider them in terms of the harmony of the proposed change, addition, construction or alteration with the structures on surrounding properties and the outlook therefrom onto the subject property; the effect it will have on the reasonable passage of light and air to the surrounding properties; the consistency and harmony of the architectural design, color, height, size, shape, proposed location and materials with the subject property and with the surrounding structures; and with respect to the physical impact thereof, including but not limited to drainage on surrounding properties.

For purposes of this Declaration, Declarant shall have the sole rights to determine which lot lines and/or street lines shall be "front" or "side" lines.

Section 2. **Assignment of Architectural Control Function; Appeal.** Declarant may assign the powers and rights reserved hereunder at Section 1 of this Article II to the Board of Directors of Hunter's Ridge Maintenance Association.

Requests for architectural change which have been rejected hereunder may be appealed by the applicant in writing. Upon the receipt of same, Declarant or its assignee shall schedule a special meeting with the applicant, which meeting shall be held within two (2) weeks after receipt of notice; the decision upon review shall be communicated in writing to the applicant within thirty (30) days after the review meeting; failure of the Declarant or its assigns to give written notice of such decision within said thirty (30) days shall be construed as a rescission of the initial rejection.

Section 3. **Ad Hoc Committee.** Prior to the appointment of the Board of Directors and the assignment thereto of the said powers and rights, the Declarant may appoint an Ad Hoc Architectural Control Committee to assist the Declarant in architectural control matters. Said Ad Hoc Architectural Control Committee will automatically be dissolved upon assignment as hereinabove provided to the Board of Directors.

Article III

DECLARANT'S DEVELOPMENT OF HUNTER'S RIDGE

Section 1. **Declarant's Business.** Notwithstanding anything hereinbefore to the contrary, the provisions of Article I hereof shall not be construed so as to prohibit Declarant or its successor in title to vacant lots from building or selling dwelling houses, maintaining an office or offices for construction and/or sales, storing construction materials, maintaining or permitting the maintenance of a trailer or mobile home, or generally carrying on its business on any portion or portions of Hunter's Ridge so long as it owns any part thereof nor shall the provisions of Article II be applicable to Declarant nor to any successor in title to Declarant who is engaged in the same business as Declarant.

Article IV

MEMBERSHIP AND VOTING RIGHTS IN THE ASSOCIATION

Section 1. **Membership.** All persons or entities who are record owners of a fee or undivided fee interest in each lot in Hunter's Ridge shall automatically become a "member", as defined below, of Hunter's Ridge Maintenance Association (the "Association") immediately upon the creation of his, her or its fee or undivided fee interest, including but not limited to the acceptance and recording of deed for such lot. "Member", as used herein shall mean all owners, as a unit, of any single lot, to the end that there shall be one member per lot.

Section 2. **Voting Rights.** The Association shall have two classes of membership:

Class A. Class A members shall be all members excepting the Declarant. Class A members shall be entitled to one vote for each lot.

Class B. Class B members shall be Declarant. The Class B members shall be entitled to three (3) votes for each lot owned by Declarant, provided that the Class B membership shall cease and become converted to Class A membership on the happening of the earlier of any of the following events:

(a) When the total votes outstanding in the Class A membership equals the total votes outstanding in the Class B membership; or

(b) On December 31, 1999.

Section 3. **Rules and Regulations.** The Association may adopt rules and regulations, not inconsistent herewith, governing the use of the said Private Open Space and Traffic Islands.

Article V

COVENANT FOR MAINTENANCE ASSESSMENTS

Section 1. **Creation of the Lien and Personal Obligation of Assessments.** The lots in Hunter's Ridge which are owned by Class A members shall be subject to an annual assessment for the purposes of the Association. By virtue of the creation of a Class A membership as hereinabove described, Class A members shall be deemed to have covenanted to be personally liable for the payment of such assessments for their respective lots, together with such interest thereon and costs of collection thereof as hereinafter provided, which assessments, interest and costs shall be charged on the land and shall be a continuing lien upon the lot against which each such assessment is made.

Section 2. **Purposes of Assessments.** Assessments levied by the Association shall be used for the purpose of maintaining the Private Open Space owned by the Association and Traffic Islands, including but not limited to, the payment of taxes and insurance thereon in addition to the cost of maintaining the grass areas and landscaping, and for those other purposes expressed in its Certificate of Incorporation.

Section 3. **Right to Fix Annual Assessments.** The Association may, from time to time, set such annual assessments as it deems necessary to carry out the duties and obligations of the Association, as set forth hereinabove, and as they may change from time to time; provided, however, that any change in said assessment must be approved by two-thirds (2/3) majority of the Class A members present at a meeting duly called for this purpose written notice shall set forth the purpose of the meeting. The annual assessment shall be at the same rate for each and every lot, and must be in the aggregate sufficient to maintain the property owned by the Association, including grass cutting, normal landscaping maintenance, and payment of insurance premiums and taxes thereon, except to the extent that Declarant voluntarily pays for or provides same; assessments may include such additional sums as may be deemed necessary by the Association to establish reserves for maintenance to meet the financial needs of the Association not related to maintenance (as provided above) of its properties. Declarant shall bear the expense of maintenance, including without limitation, mowing, taxes and insurance premiums on the Association's property until August 1, 1990.

Section 4. **Commencement Date of Annual Assessments.** The initial assessment shall be due on March 1, 1990, in the amount of $150.00 for the period beginning March 1, 1990 and ending February 28, 1991. Upon written notice from Declarant to the effect that Declarant shall continue past August 1, 1990 all or any portion of the maintenance the initial assessment may be reduced accordingly by the Association. The first day of March shall be the due date of annual assessments for each succeeding assessment period (March 1 to February 28). In the case of lots

which are conveyed by the Declarant during any assessment period, the assessment on each of said lots shall be an amount which bears the same relationship to the annual assessment as the remaining number of months in that assessment period bears to twelve.

Section 5. **Assessment - Early Payment Discount.** A discount will be allowed to any Association member whose annual assessment is received by the treasurer of the Association prior to the thirty-first day of March of the year in which that assessment is due, which said discount shall be twenty percent of the gross assessment.

Section 6. **Effect of Non-Payment of Assessment; The Personal Obligation of the Owner; the Lien; Remedies of Association.** Assessments which are not paid before April 1, of the assessment period shall be deemed to be delinquent and, together with interest thereon at the legal rate of interest in the State of Delaware from the due date until paid and costs of collection thereof including reasonable attorney's fees, thereupon shall become a continuing lien on the lot assessed which shall bind such lot in the hands of the owner, his heirs, devisees, personal representatives, successors and assigns. The Association may bring an action against the member personally obligated to pay any delinquent assessment or may bring an action in a court of competent jurisdiction to foreclose the lien thereof against the property, and there shall be added to the amount of such assessment in each such case interest and costs as aforesaid, together with reasonable attorney's fees.

Said assessments or charges shall be subordinate in lien to the lien of any mortgage or mortgages on the property which is subject to such charges regardless of when said mortgage or mortgages were created or when such charges accrued; provided, that such subordination shall apply only to charges that shall have become payable prior to the passing of title under foreclosure of such mortgage or mortgages and the transferee under such foreclosure shall not be liable for payment of any assessment accruing prior to said foreclosure, but nothing herein shall be held to affect the rights herein given to enforce collection of such charges accruing after sale under foreclosure of such mortgage or mortgages; and provided further, that such charges accruing after sale shall also be subordinate in lien to the lien of any further mortgage or mortgages which are placed on property subject to such charges, with the intent that no such charges shall at any time be prior in lien of any mortgage or mortgages whatsoever on such property.

Section 7. **Assessment Lien Docket.** The Association shall keep an Assessment Lien Docket at the registered office of Hunter's Ridge Maintenance Association, a Delaware corporation, which at the date of recording hereof is at Suite 1011, 913 Market Street, Wilmington, Delaware, 19801. Immediately upon assessment's becoming delinquent as hereinabove provided, the Treasurer of the Association shall cause an entry thereof to be made in the Docket, which entry shall disclose the date the entry is made, the names of the owners of the subject lot as shown in the Association's records, the number of the lot, the amount of the delinquent assessment, the due date and the assessment period of the delinquent assessment.

Upon written inquiry of any lot owner or any attorney-at-law who certifies to the Association that he represents either an owner of a lot in Hunter's Ridge or a purchaser thereof, the Treasurer, upon receipt of $10.00 as service charge, shall certify to the inquiring owner or attorney-at-law as to the assessment status of the lot which is the subject of the inquiry, stating:

(a) whether the current assessment is paid; and/or

(b) if there are any delinquent assessment, all of the information entered in the Lien Docket with respect to the lot which is the subject of the inquiry, together with the per diem interest thereon, to be computed on each delinquent assessment from its respective due date to the date of receipt by the Association of payment thereof in full.

That certificate of the Association shall be binding on the Association. In the event a certificate postage paid and addressed to the inquiring party at the mailing address provided by him is not deposited in the United States mails by the Association within five (5) business days after receipt of written inquiry and service charge, all assessments affecting the lot which is the subject of the inquiry shall be deemed to have been paid in full within the discounted period.

Upon receipt by the Association of payment of any delinquent assessment, with interest and costs, if applicable, as hereinabove provided, the Treasurer shall enter in the Docket the date and amount of the payment received, together with the notation "Paid in Full".

Section 8. **Exempt Property.** Notwithstanding any provision hereinabove to the contrary, no lot owned by Declarant or by its successors in title who are engaged in the construction and/or sale of dwelling houses in Hunter's Ridge shall be subject to assessment hereunder.

Article VI

CHANGES IN THE DECLARATION

These covenants and restrictions may be changed, altered, modified, or extinguished in whole or in part, at any time, by an instrument in writing signed by the record owners of two-thirds of the lots in Hunter's Ridge, which shall be recorded in the office of the Recorder of Deeds, New Castle County, State of Delaware, excepting, however, that the Declarant, including its successors and assigns in the same business as Declarant, so long as it is the owner of not less than twenty (20) of the said lots shall have the absolute right to amend this Declaration without the joinder of any other owners by executing and recording an amendment in the Office aforesaid, and provided further that Declarant, its successors and assigns in the same line of business as Declarant, so long as it is the owner of any of the said lots shall have the absolute right to amend this Declaration without the joinder of any other owners by executing and recording an amendment in the Officer aforesaid, if such amendment is:

(a) required by Federal, State, County or local law, ordinance, rule or regulation; or

(b) required by any mortgagee of improved lots and dwelling houses in the premises; or

(c) required by any title insurance company issuing title insurance to owners and/or mortgagees of same; or

(d) required by the Federal Housing Administration, Department of Housing and Urban Development, Veterans Administration, Farmers Home Administration, Delaware State Housing Authority, Federal National Mortgage Association, Federal Home Loan Mortgage Corporation, GNMA or any like public or private institution acquiring, guaranteeing, or insuring mortgages providing any type of financial assistance, with respect to dwelling units in Hunter's Ridge.

Article VII

CHANGES IN THE RECORD PLAN

Declarant reserves the right to amend the Record Plan of Hunter's Ridge provided that such amendment does not:

(a) increase the overall density of Hunter's Ridge;

(b) decrease the total amount of open space of Hunter's Ridge; or

(c) change the alignment of any street in Hunter's Ridge at any point where any lots not owned by Declarant abut any such street. By acceptance and recording of a deed in Hunter's Ridge, the grantee for himself and his successors in title shall be deemed to have given to Declarant his power of attorney for the purpose of executing such resubdivision plan as owner, provided such resubdivision plan complies with the terms of this Article.

Article VIII

ENFORCEMENT

Enforcement of these covenants and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure to enforce any covenants or restrictions herein contained shall in no event be deemed a waiver of the right to do so thereafter or a waiver of the right to enforce the other restrictions contained herein. Action of enforcement may be brought by Declarant, its successors and assigns, or any owner of any land which is the subject of this Declaration; Declarant reserves the right to assign its power to enforce to Hunter's Ridge Maintenance Association by appropriate instrument in writing, recorded in the Office of the Recorder of Deeds, in and for New Castle County, Delaware. The reasonable attorney's fees of the prevailing party in such action shall be paid by the losing party unless otherwise ordered by the court.

Article IX

NOTICES

Any notice required to be sent to any member or owner under the provisions of this Declaration shall be deemed to have been properly sent when, mailed, postpaid, to the last known address of the person who appears as Member or Owner on the records of the Association at the time of such mailing.

Article X

SEVERABILITY

Invalidation of any one of these covenants or restrictions or portion thereof by judgment or court order shall in no way affect any other provisions which shall remain in full force and effect.

Article XI

APPLICABILITY

Section 1. **Generally.** The foregoing restrictions shall apply to and bind only the land on the Plan of Hunter's Ridge, and in no event shall the same be construed to apply to or in any way or manner bind or affect any other lands of Declarant, whether such lands are contiguous thereto or otherwise; and no owner of any such lot or lots shall have any right or easements whether in law, equity or otherwise in and to any other lands of the Declarant, any law, custom or usage to the contrary notwithstanding."

Section 2. **Owner and Equitable Owner.** Upon the conveyance of the portion of the SUBJECT LAND constituting Lots 6 through 72, inclusive, as shown on the Plan of Hunter's Ridge, from Owner to Equitable Owner, all of the rights, privileges and obligations herein described which pertain to Declarant shall pertain only to Equitable Owner, and, following such conveyance, the term "Declarant", as used herein shall be understood as referring only to Equitable Owner.

Section 3. **Applicability to Retained Land of Owner.** Upon the conveyance of the portion of the SUBJECT LAND constituting Lots 6 through 72 inclusive, as shown on the Plan of Hunter's Ridge, from Owner to Equitable Owner, the portion of the SUBJECT LAND constituting Lots 1 through 5, inclusive, as shown on the Plan of Hunter's Ridge (the "Retained Land of Owner") shall be subject to all of the restrictions imposed hereby except those restrictions imposed under Article I hereof (the Article I Restrictions"). The Article I Restrictions shall apply with full force and effect to the Retained Land of Owner upon the earliest to happen of (a) such time as any lot in the Retained Land of Owner shall not be both owned and possessed by either or both of Paul L. Schlosser and Dorothy J. Schlosser, (b) construction shall be commenced upon a residence on any lot in the Retained Land of Owner, or (c) Lot 1 shall be denied vehicular access to Polly Drummond Road.

IN WITNESS WHEREOF, The said Paul L. Schlosser and Dorothy J. Schlosser have hereunto set their hands and seals and the said Granville Development Corporation, hath caused its name by Dennis W. Neal, its President to be hereunto set, and the common and corporate seal of the said corporation to be hereunto affixed, duly attested by its Secretary, the day and year first above written.

Sealed and Delivered
In the Presence of:

[signature] [signature] (SEAL)
PAUL L. SCHLOSSER

[signature] [signature] (SEAL)
DOROTHY J. SCHLOSSER

GRANVILLE DEVELOPMENT CORPORATION:

[signature] BY: [signature]
President

[signature] ATTEST: [signature]
Secretary

[seal: circular corporate seal overlapping the Secretary line, only partly legible – fragments "SEAL", "DEVEL...", "CORPO...", "DEL..." and a center date, possibly "1986"[?]]

STATE OF DELAWARE)
) SS.
NEW CASTLE COUNTY)

The foregoing Declaration was acknowledged before me this [handwritten: 19th] day of [handwritten: January], 1989 by PAUL L. SCHLOSSER.

[signature]
Notary Public
My commission expires: [handwritten: 7/9/90] [seal: circular notary public seal, mostly illegible]

STATE OF DELAWARE)
) SS.
NEW CASTLE COUNTY)

The foregoing Declaration was acknowledged before me this [handwritten: 19th] day of [handwritten: January], 1989 by PAUL L. SCHLOSSER.

[signature]
Notary Public
My commission expires [handwritten: 7/9/90] [seal: circular notary public seal, mostly illegible]

STATE OF DELAWARE)
) SS.
NEW CASTLE COUNTY)

Be It Remembered, That on this [handwritten: 19th] day of [handwritten: January], 1989, personally came before me, the Subscriber, a Notary Public for the State and County aforesaid, DENNIS W. NEAL, President of Granville Development Corporation, a Delaware corporation, party to this Indenture, known to me personally to be such, and acknowledged this Indenture to be his act and deed and the act and deed of the said corporation, that the signature of the President there to is in his own proper handwriting and the seal affixed is the common and corporate seal of the said corporation, and that his act of sealing, executing, acknowledging and delivering said Indenture was duly authorized by a resolution of the Board of Directors of the said corporation.

Given under may Hand and Seal of Office, the day and year aforesaid.

[signature]
Notary Public
My commission expires: [handwritten: 7/9/90] [seal: circular notary public seal, partially legible]

6 January 1989
Project: Lot Nos. 1 - 21, inclusive
Project No. 8028

Description of property situate in Mill Creek Hundred, New Castle County, State of Delaware, being Lot No's 1-21 inclusive, as shown on the Record Major Subdivision Plan of Hunters Ridge, prepared by Franco R. Bellafante, Inc.; recorded in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No.[handwritten: 9600]. The said property being more particularly bounded and described as follows, to wit:

Beginning at a point on the northerly side of Polly Drummond Road, also known as Ebenezer Church Road; said point being the northwesterly end of the junction curve having a radius of

30.00', joining the northeasterly side of Polly Drummond Road with the northwesterly side of Haystack Drive at 60 feet wide;

Thence from the point and place of Beginning, along the northerly side of Polly Drummond Road, said side being distant 40 feet at right angles from the center line of Polly Drummond Road, North 36°-24'-01" West, 643.26' to a corner of the Silverwood Subdivision;

Thence along the Subdivision of Silverwood by the following five (5) courses and distances: (1) North 60°-37'-17" East, 573.52' to a corner, (2) North 61°-00'-12" East, 839.85' to a corner; (3) North 52°-30'-44" East, 198.00' to a corner; (4) North 45°-51'-27" East, 219.94' to a corner; and (5) North 41°-12'-16" East, 127.97' to a corner of Lot No. 21, Hunter's Ridge and a one acre parcel to be conveyed to Ralph and Kathleen Degli Obizzi, as shown on the plan of Hunter's Ridge;

Thence leaving the subdivision line of Silverwood, along the division line between the one acre parcel and Lot No. 21, by the following two (2) courses and distances: (1) South 64°-50'-00" East, 80.66'; and (2) South 34°-30'-00" East, 172.14' to a corner on the northwesterly side of Palomino Drive, at 50 feet wide;

Thence along the northwesterly side of Palomino Drive, by the following two (2) courses and distances: (1) South 55°-30'-00" West, 326.13' to a point of curvature; and (2) by a curve to the left, having a radius of 200.00', an arc length of 131.20' to the northeasterly end of a junction curve, having a radius of 25.00', joining the northwesterly side of Palomino Drive, at 50 feet wide with the northerly side of Haystack Drive, at 50 feet wide;

Thence by said curve to the right, an arc length of 29.22' to the westerly end of said junction curve;

6 January 1989
Project: Lot Nos. 1 - 21, inclusive
Project No. 8028

Thence along the sides of Haystack Drive by the following sixteen (16) courses and distances: (1) by a curve to the left, having a radius of 205.00', an arc length of 91.72' to a point of reverse curvature; (2) by a curve to the right, having a radius of 30.00', an arc length of 37.17' to a point of reverse curvature; (3) by a curve to the left, having a radius of 52.00', an arc length of 138.51' to a point of reverse curvature; (4) by a curve to the right, having a radius of 30.00', an arc length of 39.73' to a point of tangency; (5) South 53°-30'-00" West, 202.48' to a point of curvature; (6) by a curve to the right, having a radius of 30.00', an arc length of 47.12' to a point of tangency; (7) North 36°-30'-00" West, 15.00', to a point of curvature; (8) by a curve to the left, having a radius of 50.00', an arc length of 78.54' to a point of tangency; (9) South 53°-30'-00" West, 60.00' to a point of curvature; (10) by a curve to the left, having a radius of 50.00', an arc length of 78.54' to a point of tangency; (11) South 36°-30'-00" East, 34.25' to a point of curvature; (12)

by a curve to the right, having a radius of 30.00', an arc length of 34.48' to a point of reverse curvature; (13) by a curve to the left, having a radius of 190.00', an arc length of 77.44' to a point of tangency; (14) South 06°-00'-00" West 182.59' to a point of curvature; (15) by a curve to the left having a radius of 315.00' and arc length 250.15' to a point of tangency; (16) South 51°-30'-00" west 408.75' to the northeasterly end of the junction curve joining the northwesterly side of Haystack Drive with the northeasterly side of Polly Drummond Road;

Thence by said curve to the right having a radius of 30.00' and arc length of 48.22' to the first mentioned point and place of beginning;

Be the contents thereof what they may.

Subject to the applicable notes and easements as shown on the above mentioned Record Plan.

Prepared By: _____ Checked By: [initials]

{9} January 1989
Project: Lot No.22-72, Hunter's Ridge
Project No.8028

Description of property situate in Mill Creek Hundred, New Castle County, State of Delaware, being Lot No. 22-72,inclusive and three (3) unnumbered parcels designated as private open space as shown on the Record Major Subdivision Plan of Hunter's Ridge, prepared by Franco R. Bellafante, Inc.; recorded in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No.[handwritten: 9600]. The said property being more particularly bounded and described as follows, to wit:

Beginning at a point on the southeasterly side of Haystack Drive, at 60 feet wide, being the northeasterly end of the junction curve having a radius of 30.00' joining the southeasterly side of Haystack Drive at 60 feet wide witht he northerly side of Polly Drummond Road also known as Ebenezer Church Road;

Thence from the point and place of Beginning, along the southeasterly side of Haystack Drive at [illegible] feet wide, North 51°-30'-00" East 125.58' to the southwesterly end of the junction curve having a radius of {25.00'} joining the southeasterly side of Haystack Drive with the southwesterly side of Paddock Drive at 50' feet[?] wide;

Thence by said curve to the right having a radius of 25.00', an arc length of 36.22' to a point of tangency[?] on the southwesterly side of Paddock Drive;

Thence along the sides of Paddock Drive by the following four (4) courses and distances; (1) South[?] 45°-30'-00" East 137.65' to a point of curvature; (2) by a curve to the right having a radius of 30.00' and arc[?] length of 36.67' to a point of reverse curvature; (3) by a curve to the left having a radius of 52.00' an arc length[?] of 226.92' to a point of tangency; (4) North 45°-30'-

00" West, 202.45' to the southerly end of the junction curve[?] joining the northeasterly side of Paddock Drive with the southeasterly side of Haystack Drive at 60 feet wide[?];

Thence by said curve to the right having a radius of 25.00' an arc length of 42.32' to point of tangency[?] on the southeasterly side of Haystack Drive;

Thence along the southeasterly side of Haystack Drive by the following two (2) courses and distances[?]; (1) North 51°-30'-00" East 177.87' to a point of curvature; (2) by a curve to the left having a radius of[?] 375.00' an arc length of 57.72' to the southwesterly end of the junction curve having a radius of 25.00' joining[?] the southeasterly side of Haystack Drive at 60 feet wide with the southwesterly side of Bridle Path Drive[?] at 50 feet wide;

Thence by said curve to the right having a radius of 25.00' an arc length of 36.14' to a point of tangency[?] on the southwesterly side of Bridle Path Drive at 50 feet wide;

[illegible] January 1989
[illegible]oject: Lot No.22-72, Hunter's Ridge
[illegible]oject No.8028

Thence along the side of Bridle Path Drive by the following five (5) courses and distances; (1) [illegible]uth 54°-30'-00" East 137.32' to a point of curvature; (2) by a curve to the right having a radius of 30.00', an [illegible] length of 25.07' to a point of reverse curvature; (3) by a curve to the left having a radius of 52.00', an arc [illegible]ngth of 250.27' to a point of reverse curvature; (4) by a curve to the right having a radius of 30.00', an arc [illegible]ngth of 25.07' to a point of tangency; (5) North 54°-30'-00" West, 137.32' to southeasterly end of the junction [illegible]rve joining the northeasterly side of Bridle Path Drive with the southeasterly side of Haystack Drive at 60 [illegible]t wide;

Thence by said curve to the right having a radius of 25.00'; an arc length of 36.14' to a point of [illegible]erse curvature on the southeasterly side of Haystack Drive;

Thence along the sides of Haystack Drive; are the following twenty-three 23 courses and distances; [illegible] by a curve to the left having a radius of 375.00'; an arc length of 120.63' to a point of reverse curvature; [illegible] by a curve to the right having a radius of 30.00'; an arc length of 33.65'to a point of reverse curvature; (3) [illegible] a curve to the left having a radius of 75.00'; an arc length of 185.29' to a point of reverse curvature; (4) by [illegible]urve to the right having a radius of 30.00', an arc length of 38.43' to a point of tangency; (5) North 06°-00'-[illegible] East, 11.96' to a point of curvature; (6) by a curve to the right having a radius of 140.00', an arc length of [illegible].06' to a point of tangency; (7) North 53°-30'-00"; East, 75.84' to a point of curvature; (8) by a curve to the [illegible]ht having a radius of 30.00'; an arc length of 35.59' to a point of reverse curvature; (9) by a curve to the [illegible]t having a radius of 50.00'; an arc length of 59.32' to a point of tangency; (10) North 53°-30'-00" East, 160.00' [illegible] {a} point of curvature; (11) by a curve to the left having a radius of 50.00', an arc

length of 59.32' to a point [illegible] reverse curvature; (12) by a curve to the right having a radius of 30.00'; an arc length of 35.59' to a point of [illegible]gency; (13) North 53°-30'-00" East; 84.13' to a point of curvature; (14) by a curve to the right having a [illegible]ius of 155.00'; an arc length of 243.47' to a point of tangency; (15) South 36°-30'-00" East; 128.28' to a point [illegible] curvature; (16) by a curve to the right having a radius of 100.00', an arc length of 153.59' to a point of [illegible]gency; (17) South 51°-30'.00" West; 435.96' to a point of curvature; (18) by a curve to the left having a [illegible]ius of 52.00'; an arc length of 226.92' to a point of reverse curvature; (19) by a curve to the right having a [illegible]ius of 30.00', an arc length of 36.67' to a point of tangency; (20) North 51°-30'-00" East, 358.89' to a point of [illegible]vature; (21) by a curve to the left having a radius of 150.00', an arc length of 230.38' to a point of [illegible]gency; (22) North 36°-30'-00" West, 128.28' to a point of curvature; (23) by a curve to the left having a [illegible]ius of 205.00', an arc length of 117.24' to the easterly end of the junction curve joining the northerly side [illegible] Haystack Drive at 50 feet wide with the southerly side of Palomino Drive at 50 feet wide{;}

{9 January 1989}
Project: Lot No{.}22-72, Hunter's Ridge
Project No.8028

Thence by said curve to the right having a radius of 25.00', an arc length of 41.66' to the northerly end of said curve;

Thence along the sides of Palomino Drive by the following six (6) courses and distances; (1) by a curve to the right having a radius of 150.00', an arc length of 76.65' to a point of tangency; (2) North 55°-30'-{0}0" East, 340.00' to a point of curvature; (3) by a curve to the right having a radius of 100.00', an arc length of 35.86' to a point of compounc curvature; (4) by a curve to the right having a radius of 30.00', an arc length of 52{.}43' to a point of reverse curvature; (5) by a curve to the left having a radius of 52.00'; an arc length of 203.91' to a point of compound curvature; (6) by a curve to the left having a radius of 150.00'; an arc length of 68.55' to a point on the northerly side of Palomino Drive;

Thence leaving the northerly side of Palomino Drive along the division line between Lot No. 22 and Lands of Ralph and Kathleen Degli Obbizi; North 41°-12'-16" East; 241.78' to a corner of said lands; a point in line of Parcel No. 2 being other lands of Ralph and Kathleen Degli Obizzi;

Thence along the lands of Parcel No. 2 the following two (2) courses and distances; (1) South 11°-35'-42" East, 329.55' to a point; (2) South 21°-35'-42" East, 282.12' to a corner of the Foxfire subdivision;

Thence leaving the subdivision line of Parcel No. 2; along the subdivision line of Foxfire and lands now [handwritten: or] formerly of Steven M. and Mary Vansant; South 47°-47'-23" West; 2074.77' to a corner on the northeasterly side of Polly Drummond Road;

Thence leaving the line of lands now [handwritten: or] formerly of Steven M. and Mary Vansant; along the norhteasterly side of Polly Drommond Road; North 44°-35'-05" West, 384.56' to the southerly end of a junction curve joining the northeasterly side of Polly Drommond Road with the southeasterly end of of Haystack Drive;

Thence by said curve to the right having a radius of 30.00', an arc length of 50.31' to the first mentioned point and place of Beginning;

Containing within said Metes and Bounds, 23,930 acres, more or less.

[stamp: REC'D FOR RECORD JAN 19 1989 3:27 WILLIAM M. HONEY, Recorder]

{Prepared By:} Checked By{:} [initials]

Transcription Notes

- p. 2: "non-profit" is split at a line end ("non-/profit") and kept with a hyphen; the original may read "nonprofit".
- p. 3: Section 7 prints "10,000 lbs, G.V.W." with a comma after "lbs" and no period, and "3/4 ton", exactly as printed.
- p. 4: "rear-most" is split at a line end and kept hyphenated to match "front-most" in the same sentence; the original could read "rearmost".
- p. 4: "In-ground" in Section 11 is split at a line end and kept hyphenated to match "above-ground" in the same section.
- p. 5: Article II, Section 1, "outbuilding": split "out-" / "building" at a line end and read as one word; it could be "out-building" if the hyphen is intrinsic.
- p. 6: The first paragraph reads "or it successors or assigns"; "it" is printed (not "its") and is kept as an original typo.
- p. 8: Section 3 reads "called for this purpose written notice shall set forth the purpose of the meeting" with no word or punctuation between "purpose" and "written"; this is exactly as printed and appears to be an omission in the original.
- p. 9: Section 4 ("all or any portion of the maintenance the initial assessment may be reduced") and Section 6 ("April 1, of the assessment period") are transcribed exactly as printed, with no words or punctuation added or removed.
- p. 9: The Section 5 caption is printed with a spaced hyphen: "Assessment - Early Payment Discount".
- p. 10: Item (b) reads "if there are any delinquent assessment" with "assessment" singular, as printed.
- p. 11: The second occurrence reads "Officer aforesaid", as typed in the original; the first occurrence reads "Office aforesaid".
- p. 13: Section 1 ends with a closing double quotation mark (notwithstanding.") that has no opening quotation mark on this page, as printed.
- p. 13: Article IX reads "sent when, mailed, postpaid", with a comma after "when" as printed.

- p. 14: Section 3 reads "(the Article I Restrictions")" with a closing quotation mark but no opening one, as printed; this appears to be an original typo.
- p. 14: The signatures are handwritten and are not transcribed as names; the President's signature looks consistent with Dennis W. Neal and the attest signature looks like "Terry O'Neal", while the first two witness signatures appear to be by the same hand and the other witness signatures are illegible scrawls.
- p. 14: The corporate seal overlaps the Secretary line and is only partly legible; its center date looks like "1986" printed upside down, marked [?].
- p. 15: Second acknowledgment: no colon is visible after "My commission expires".
- p. 15: "Given under may Hand" (for "my") and "there to" (two words) are printed as shown.
- p. 15: The second acknowledgment, like the first, reads "by PAUL L. SCHLOSSER"; there is no separate acknowledgment naming Dorothy J. Schlosser.
- p. 16: "Lot No's" is printed that way, and the first paragraph prints "Hunters Ridge" without an apostrophe while later text prints "Hunter's Ridge"; both are kept as printed.
- p. 17: Course (16) prints "west" in lowercase, as printed.
- p. 17: The "Prepared By:" line is blank, and the "Checked By:" line has handwritten initials (roughly "LB" or "LD") that are not legible as letters.
- p. 18: The header day "{9}" and the radius "{25.00'}" (before "joining the southeasterly side of Haystack Drive with the southwesterly side of Paddock Drive") are faded or cut off in this copy and are restored from the matching survey exhibit in the other Declaration.
- p. 18: "Haystack Drive at [illegible] feet wide": a short number (probably a width) at the start of the next line has faded away, and the "[illegible]" mark replaces it.
- p. 18: Many line beginnings are faded or cut off, so words completed from the visible remainders are marked [?]: "South", "arc", "length", "curve", "wide", "distances", "of", "joining", "Drive", "feet" and "tangency" (three places). The Haystack Drive two-course paragraph reads "distances[?];" because its first letters are cut off in both copies.
- p. 18: "at 50' feet[?] wide" is printed with both the foot mark and the word "feet".
- p. 18: "witht he" is printed that way (a transposition of "with the").
- p. 18: Differences from the matching survey exhibit in the other Declaration: this copy clearly reads "Inc.;" where the other reads "Inc;[?]", and clearly reads "follows, to wit:" where the other reads "follows, ,to wit:".
- p. 19: The left edge of the text column is clipped, so the first few characters of most lines are missing and marked [illegible]; visible fragments are transcribed as they appear (for example "[illegible]uth", "[illegible]ngth", "[illegible]rve", "[illegible]ius"), and missing letters are deliberately not reconstructed. The clipping also hides whatever preceded "January" in the header date line, the other header lines' first letters ("oject" for presumably "Project"), the printed page number ("[illegible]ge 2"), the course numbers "(1)" and "(2)" in the Haystack Drive paragraph, the seconds in "North 06°-00'-[illegible] East", the leading digits of the arc length in course (6), and short words such as "to" and "by" at line starts.
- p. 19: Course (10) reads "{a} point of curvature" and the final word reads "wide{;}"; both are cut off or faded in this copy and are restored from the matching survey exhibit in the other Declaration.

- p. 19: Printed oddities kept as shown: "the following twenty-three 23 courses" (no parentheses), "Haystack Drive; are the following", a semicolon after the seconds mark in course (7) ("00"; East"), a period instead of a hyphen in course (17) ("51°-30'.00""), and no space in "33.65'to".
- p. 19: In the Bridle Path Drive paragraph, course (2) reads "30.00'," here, where the matching survey exhibit in the other Declaration reads "30.00';".
- p. 20: The header date "{9 January 1989}" and the period in "Lot No{.}22-72" are faded or cut off in this copy and are restored from the matching survey exhibit in the other Declaration.
- p. 20: In course (2), the seconds of "55°-30'-{0}0"" start the next line and are mostly faded; only a dot of the first digit and part of a 0-like second digit remain, so the first digit is restored from the matching survey exhibit in the other Declaration.
- p. 20: In course (4), "52{.}43'" shows no period between "2" and "4" in this copy; the period is restored from the matching survey exhibit in the other Declaration.
- p. 20: Printed oddities kept as shown: "compounc curvature" in item (3), "norhteasterly" in the next-to-last Thence paragraph, "Obbizi" and "Obizzi" for the same family name, "Polly Drummond Road" in one paragraph but "Polly Drommond Road" (twice) in the next, and "end of of Haystack Drive".
- p. 20: The cursive word "or" is inserted with a caret between "now" and "formerly" in two places, and reads "or" only at close inspection because it is small.
- p. 20: The vertical recorder's stamp reads "REC'D FOR RECORD JAN 19 1989 3:27", with no a.m. or p.m.
- p. 20: In the footer, "{Prepared By:}" and the colon after "Checked By" are faded in this copy and are restored from the matching survey exhibit in the other Declaration; handwritten initials follow "Checked By" and are not legible as letters.